

Conclusion. HYUNDAI's motion to compel arbitration is denied.

MIGUEL ANGEL SANDOVAL FLORES et al. v. INTEGRITY MOVING SOLUTIONS, INC., et al. CU25-09834

Defendants' Motion for Dismissal

TENTATIVE RULING:

It is unclear to the court why plaintiff's counsel and defense counsel did not meet and confer and why this motion was not vacated by defense counsel. Unfortunately, unnecessary motions like these too often clog court calendars creating unnecessary backlogs and wasting resources.

William Richard LaVigne filed this motion to dismiss on behalf of Defendant INTEGRITY MOVING SOLUTIONS, INC. and on behalf of himself on May 26, 2026. Subsequently, an answer was filed by defense counsel on behalf of both defendants on August 5, 2026.

A pro per may not represent a corporation. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) By doing so, LaVigne engaged in the unlicensed practice of law.

The 7 month delay in serving the complaint is not a basis for dismissal of the action.

The court notes that opposition to the motion was served after an answer had been filed with legal counsel noted on the caption. The opposition was served solely on LaVigne and not on defense counsel. It is unclear to the court why plaintiff's counsel failed to serve the opposition to newly appearing counsel of record.

Defense counsel shall file a substitution of counsel for LaVigne individually forthwith. As LaVigne is not legally permitted to represent a corporation, his "appearance" by filing a motion to dismiss is disallowed.

The motion to dismiss is DENIED.

BEATTIE v. COUNTY OF SOLANO, et al.
Case No. CU26-03723

Motion to Strike Portions of Complaint

TENTATIVE RULING

For injuries caused by a dangerous condition of public property, the only potential basis for liability against the public entity owning or controlling that property is Government Code §§630 and 635. Government Code §840 provides: